

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 22, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. at Storey Gym, 2811 House Ave., and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Roybal, and pursuant to support received by Mr. White and Dr. Aldrich, agenda item #19(c) was removed from the Consent Agenda. Upon request by Dr. Rinne, and pursuant to support received by Mr. Cook and Mr. Laybourn, agenda item #19(b) was removed from the Consent Agenda. Mr. White moved to approve remaining items, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on November 8, 2021. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a limited retail liquor license transfer of location application filed with the City Clerk’s Office for AmVets Post 10, from 3839 E. Lincolnway to 1820 Ridge Rd., Cheyenne, Wyoming. Upon inquiry, Kristina F. Jones, City Clerk, advised the applicant was present and available for questions. Ms. Jones further advised the transfer was requested as the business is changing their physical location. There being no further comments or input, Mayor Collins closed the public hearing and referred the application to Finance Committee.

ORDINANCE –3rd READING – Amending the Unified Development Code (UDC) to modify Articles 2.1 and 2.2 regarding posted and published notice requirements for divisions of land and zoning applications. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body. (#4404)

ORDINANCE –3rd READING – Amending Section 15.08.031, Building Permit Fees-Exceptions for Incentivization Program, of Chapter 15.08, International Building Code Adopted, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming, to reinstate the City of Cheyenne Core Development Incentivization Program. Reporting for Finance Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Mr. Roybal moved to amend by substitute dated November 15, 2021, seconded by Mr. Segrave. Mr. Roybal explained that although the Finance Committee recommended approving a substitute

ordinance dated November 15, 2021, staff recommends defeating that substitute and instead approving a revised substitute ordinance dated November 22, 2021. Motion to amend failed. Voting “no” – all members of the governing body. Mr. Roybal moved to amend by substitute dated November 22, 2021, seconded by Dr. Rinne. It was noted the substitute clarifies that the Planning & Development Department will be responsible for project management. Comments and concerns were made related to the eligible proposed area being only for the downtown core area and sunset clause. Discussion included ability to amend the ordinance in the future, if necessary, after sufficient data is reviewed. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. (#4405)

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, land located northeast of the intersection of Old Happy Jack Road and Westland Road. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County LI Light Industrial to LI Light Industrial for land located northeast of the intersection of Old Happy Jack Road and Westland Road. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from HR High-Density Residential to CB Community Business for land located southeast of and adjacent to the intersection of Western Hills Boulevard and Osage Avenue. Mr. Segrave declared a conflict of interest due to a business partnership with the developer. Dr. Rinne moved to approve on second reading, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook who voted “no” and Mr. Segrave who did not vote.

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for Meadowlark Estates, 2nd Filing, a replat of Tract 1 and a portion of Tracts 2-9 of Meadowlark Estates, Cheyenne, Laramie County, Wyoming (located northeast of and adjacent to the intersection of Dell Range Boulevard and Whitney Road). Trey Rinne, AVI, agent for the applicant, made himself available for questions. Dr. Rinne moved to adopt with the condition that the final plat would not be signed until the development agreement has been approved by the governing body, seconded by Mr. Segrave. Voting “yes” – all members of the governing body. (#6186)

[CA] RESOLUTION – Authorizing the City Treasurer to discharge uncollectible debts pursuant to Wyoming Statute §16-4-502. Motion (per Consent Agenda) carried. (#6187)

RESOLUTION – Certifying the Converse Avenue Reconstruction Plan. Dr. Rinne moved to adopt, seconded by Mr. Segrave. Rande Pouppirt, area business/property owner, requested consideration of approving the alternate design which would not affect the current number of his parking spaces, noting the preferred design would remove one half of his available parking. MPO Director Tom Mason provided details on the design process and explained options will be reviewed by the City Engineer prior to implementation. Upon inquiry, Tom Cobb, City Engineer, explained a consultant will be obtained for review of design options which will include the entire intersection, there will be public hearings throughout the process for public vetting and that the final design does not typically come back for governing body approval. Following request by members of the governing body, Mr. Cobb committed to bringing the final design options before the governing body prior to implementation. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich, Mr. Cook and Mr. Laybourn voting “no”. (#6188)

[CA] RESOLUTION – Supporting the City of Cheyenne’s application for a Land and Water Conservation Fund Grant for a restroom facility in Saddle Ridge Park – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing submission of a Federal Emergency Management Agency Preparedness Grant application under the Assistance to Firefighters Grant Program, on behalf of the Governing Body of the City of Cheyenne, for the purpose of purchasing new vehicle exhaust systems for existing fire station infrastructure – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing submission of a Federal Emergency Management Agency Preparedness Grant application under the Assistance to Firefighters Grant Program, on behalf of the Governing Body of the City of Cheyenne, for the purpose of purchasing a new medium rescue vehicle and Rapid Intervention Team training and program development – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Designating the allocation of WyoLotto Revenues to the City of Cheyenne be distributed to Community Recreation and Events for the purpose of construction, remediation, and completion of quality of life projects in the City of Cheyenne for a five (5) year period – referred to Finance Committee. (Sponsor – Mr. Johnson)

[CA] Grant of Access Easement and Temporary Construction Easement on City Owned Property, Tract H, Sweetgrass 1st Filing, between the City of Cheyenne and Sweetgrass Land Co. LLC. Motion (per Consent Agenda) carried. (#7449)

Professional Services Agreement between the City of Cheyenne and Plan One Architects, for the Level I/Level II Feasibility Study for 15th Street Corridor Plan (Annexation Improvement Fund). Mr. Segrave moved to approve in an amount not to exceed \$100,000.00, seconded by Mr. White. Dr. Rinne moved to amend by deleting Reed Avenue funds from Exhibit A-Scope of Work, Section (I), seconded by Mr. Laybourn. Motion to amend failed. Voting “no” – all members of the governing body with the exception of Mr. Roybal voting “yes”. Planning & Development Director Charles Bloom provided details relating to the scope of work on the project. Comments

were made regarding use of 1% Specific Purpose Tax funding and overages, funding sources available for the project and opposition to allocation of 2017 Reed Avenue Corridor tax funds. Discussion included review of the 2017 1% Specific Purpose Tax ballot projects, faith of the voters relating to use of tax dollars and ballot language clarification. Dr. Rinne moved to amend by excluding the use of 2017 Specific Purpose Tax funds for Reed Avenue in Exhibit A-Scope of Work Section (I), seconded by Mr. White. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Esquibel, Mr. Johnson and Mr. Segrave voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body. (#7450)

Development Agreement between the City of Cheyenne and Swagger Construction, LLC, for Tax Increment Financing for the Hitching Post Plaza (TIF Funding). Mr. Roybal moved to approve in an amount not to exceed \$1,200,000.00, seconded by Mr. White. City Attorney Stefanie Boster requested support for a substitute agreement dated November 19, 2021 along with additional language clarification in Section 9-B: Reimbursement. Mr. Roybal moved to amend by substitute dated November 19, 2021 which included a friendly amendment to change the following language to Section 9-B: Reimbursement – “Developer grants, conveys, and assigns to Lender the right to receive all reimbursements from the City for the actual and reasonable costs incurred for Developer Work, reimbursement shall occur from the actual tax increment allocation generated by the property, additional security for the loan granted from Lender to Developer. Lender’s right to receive reimbursement from the City shall continue until the balance of the loan is paid in full or otherwise agreed to in writing and signed by Developer, and Lender, and delivered to the City”, seconded by Mr. Johnson. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#7451)

[CA] Telecommunications Right-of-Way License and Use Agreement between Sprint Communications Company L.P. and the City of Cheyenne. – referred to Finance Committee.

[CA] Consideration of Bid #E-3-22 for furnishing one (1) new 2021-2022 1 ton, regular cab, full size pickup truck, 4x4, with an 8-foot box and a fleet work truck package for the City of Cheyenne, Community Recreation & Events Department-Weed & Pest Division (Weed & Pest Fund). Motion (per Consent Agenda) carried (accepted bid from Greiner Ford, Casper, WY in an amount of \$36,331.00).

[CA] Consideration of Bid #E-4-22 for furnishing two (2) new 2021-2022, 11 feet wide diesel rotary mowers for the City of Cheyenne, Community Recreation & Events Department-Parks Division (2015-2018 and 2019-2022 1% Sales Tax) Motion (per Consent Agenda) carried (accepted bid from LL Johnson Distributing Company, Denver, CO in an amount of \$16,781.22).

[CA] Consideration of Bid #S-6-22 for a contract between the City of Cheyenne and Mountain Masonry for the Airport Fountain Phase II – Terracotta Restoration (Historic Preservation Board, SHPO Grant and CTF Grant) – referred to Finance Committee.

[CA] Consideration to purchase between the City of Cheyenne and Motorola Solutions / Bearcom for the purchase of Motorola APX Next radios for the City of Cheyenne Police

Department, and Motorola APX 1500 radios for the City of Cheyenne Public Works Department, Street and Alley Division (Specific Purpose Sales Tax) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Notice of Emergency Procurement. In accordance with the City of Cheyenne Purchasing Policy, an Emergency Procurement has been authorized by Mayor Collins for the purchase of a replacement lighting console for the Cheyenne Civic Center, as the existing console has failed beyond repair. The emergency procurement has been authorized to Brown Note Productions for \$51,097.19.

Under other business:

Upon inquiry, Community Recreation & Events Director Teresa Moore provided details relating to the necessity of the Emergency Procurement. Ms. Moore advised the lighting console failed beyond repair and due to previously schedule events at the Civic Center, it became necessary to replace the equipment to meet the requirements of those event contracts. Ms. Moore reported on funding sources used for the purchase which include funds from fundraising and Shutter Venues funding, noting they did solicit quotes. Purchasing Manager TJ Barttelbort provided information on the normal bidding process and associated timelines. It was further noted that expenses associated with an option of renting the necessary equipment would have become more expensive than the emergency purchase.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:16 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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